

**Please read the following important terms and conditions and check that they contain everything which you accept and nothing that you are not willing to agree to.**

Spenny Piggy accessed at [spennypiggy.co](http://spennypiggy.co) or [uk.spennypiggy.co](http://uk.spennypiggy.co), herein referred to as [spennypiggy.co](http://spennypiggy.co) ("Spenny Piggy" or the "Website" or the "Site") is a social media Wishlist website and application service that allows users to receive funds for gifts from their fans. "Users" or "Wishers" post items on their Wishlist and "Gifters" sponsor the purchase of the item through the Spenny Piggy website. Spenny Piggy does not purchase any items on behalf of our Users ("Wishers"). Spenny Piggy sends the funds for the item directly to the User, through our third-party payment gateway, and the User may complete the purchase on their own behalf. For Clarity these are the services provided:

1.1.1 Allow users to Receive Funds

1.1.2 Allow users to Upload images, post items on their Wishlist, set up subscriptions and memberships.

1.1.3 Allow gifters to sponsor the purchase of items for users.

1.1.4 Allows gifters to subscribe, join memberships or support creators financially whilst receiving exclusive rewards, content or additional off platform benefits.

***Summary of some of your key rights:***

This agreement sets out:

- your legal rights and responsibilities;
- our legal rights and responsibilities; and
- certain key information required by law.

In this agreement:

- **'We', 'us' or 'our'** means Social Vortex Limited and
- **'You' or 'your'** means the person using our site.

If you don't understand any of the provisions in the agreement, and want to talk to us about it, please contact us by:

Email: [Support@spennypiggy.co](mailto:Support@spennypiggy.co) (Monday to Friday: 9 am to 5 pm GMT); or

Telephone: 020 4587 3147 (Monday to Friday: 9 am to 5 pm GMT)

*We are Social Vortex Limited a company registered in England and Wales under company number: 15233693. DBA Spenny Piggy.*

*Our registered office is at: 55 Colmore Row, C/O WeWork, Birmingham, B3 2AA, UK.*

Our VAT registration number is GB 452012540

For our US Operations we are Social Vortex, Inc, a company registered in Delaware United States of America.

Our Registered Office is at: 1111B S Governors Ave, STE 7527, Dover, DE 199904, US.

**We may update these terms from time to time, so check this page regularly for updates. If you do not accept a change to these terms, you must stop accessing or using our site immediately.**

## **1. Introduction**

- 1.1. This agreement applies to anyone who accesses or uses our site, regardless of registration or user status. If you do not wish to be bound by this agreement, do not access or use our site.
- 1.2. This agreement is only available in English. No other languages will apply to this agreement.
- 1.3. When accessing the site, buying any gifts, subscriptions, memberships or any other media, you also agree to be legally bound by our website terms and conditions and any documents referred to in them;
- 1.4. From time to time, we may restrict access to some parts of the Website, or the entire website, to Users.

## **2. Your privacy and personal information**

- 2.1. Our **Privacy Policy** is available [here](#)
- 2.2. Your privacy and personal information are important to us. Any personal information that you provide to us will be dealt with in line with our Privacy Policy, which explains what personal information we collect from you, how and why we collect, store, use and share such information, your rights in relation to your personal information and how to contact us and supervisory authorities if you have a query or complaint about the use of your personal information.
- 2.3. By using Spenny piggy, you consent to receiving communications from us electronically, including emails and messages posted to your Spenny Piggy account. You acknowledge and agree that all communications that we provide to you electronically satisfy any legal requirement that such communications be in writing. If you wish to withdraw our consent to receiving communications from us at any time, please email [support@spennypiggy.co](mailto:support@spennypiggy.co), notifying us of your withdrawal of consent.

### **3. Account Registration**

- 3.1.** To register and create an account on Spenny Piggy, you must be over the age of 18 and provide a valid email address, a username, and a password or a valid Gmail account. It is a condition of your use of the Website that all the information you provide on the Website is correct, current, and complete.
- 3.2.** You agree that all information you provide to register with this Website or otherwise, including but not limited to through the use of any interactive features on the Website, is governed by our Privacy Policy at <https://app.termly.io/document/privacy-policy/696baafc-17cd-4a28-b758-a8f597cf2ad6> and you consent to all actions we take with respect to your information consistent with our Privacy Policy.
- 3.3.** If you are looking to subscribe, join a membership or provide financial support to other profiles, you will need to add a payment card. When adding a payment card, your card information is stored by a payment processor, which is called Stripe. However, as far as legally possible, Spenny Piggy reserves the right to change the payment processors it uses at any time and without notice to you. Spenny Piggy does not store any payment card information.
- 3.4.** If you are looking to earn money from gifts subscribing, joining a membership or providing financial support to your profile, you will need to add a bank account and upload a valid form of ID. You may also need to submit additional legal information (the exact information required will depend on your country). Your earnings will be paid into your bank account (UK or International) or via one of our payout processors. We store your bank details to make payment. For UK Creators we store details to make payment to your chosen UK bank account. (Sort Code, Account Number, address and name of the account). For International Creators we store all required information as per your countries banking requirements. This will include bank account details, your address and name on the account. All details are stored within our business account on stripe.com.
- 3.5.** Your TAX Status and compliance you are solely responsible for. By using the Service, you acknowledge that you are solely responsible for all applicable local or equivalent taxation required by your local laws and governance. Spenny piggy is not responsible for providing any information to you, other than, upon request, a document displaying all funds transferred to you by our third-party payment processor. If Spenny piggy is required to provide a tax document on Your behalf, the cost to generate such document shall be Your responsibility, and You will be billed and shall reimburse Spenny Piggy for that fee. You acknowledge and accept that Spenny Piggy is not responsible for providing any taxation. You will be paid any additional tax from applicable transactions, and it is your responsibility to submit your earnings and pay the relevant tax authority in your jurisdiction. For the UK it is HMRC.
- 3.6.** By registering on Spenny Piggy, you confirm that:
- all account registration, profile information and content you provide is your own information and the content is truthful and accurate;

- if you previously had an account with Spenny Piggy, your old account was not terminated or suspended by Spenny Piggy for breach of these Terms;
- you will not use any third-party payment processors to accept payments for gifts, donations or subscriptions, or any other service, via Spenny Piggy;
- you register on Spenny Piggy for your own personal use and you will not sell, rent or transfer your account to any third party; and
- Spenny Piggy reserves the right, at any time, to verify the information which you provide to us as well as your compliance with these Terms and to suspend your account if it is unable to do so to its reasonable satisfaction.

- 3.6. You are fully responsible for any and all activities that occur on your account and you are responsible for keeping your login details confidential and secure. You agree not to disclose these details to any other person or entity and immediately notify us at [support@spennypiggy.co](mailto:support@spennypiggy.co) if you believe someone has used or is using your account without your permission or if your account has been subject to any other breach of security. You also agree to ensure that you log out of your account at the end of each session. You should use particular caution when accessing your account from a public or shared computer so that others are not able to access, view or record your password or other personal information.
- 3.7. We have the right to disable any username, password, or other identifier, whether chosen by you or provided by us, at any time and at our sole discretion for any or no reason, including if, in our opinion, you have breached any provision of these terms.
- 3.8. Your use of the site shall be only for your use, and you agree that you shall be responsible for:
1. All costs and expenses you may incur in relation to your use of the Site; and
  2. Keeping your password and other account details confidential.
- 3.9. The site is intended for use only by those who can access it from within the UK. If you choose to access the site from locations outside the UK, you are responsible for compliance with local laws where they are applicable.
- 3.10. We seek to make the site as accessible as possible. If you have any difficulties using the site, please contact us at [support@spennypiggy.co](mailto:support@spennypiggy.co) and/or use the website accessibility tools available at [Spennypiggy.co](https://spennypiggy.co).
- 3.11. As a condition of your use of the Site, you agree to comply with our Acceptable Use Policy [here](#).
- 3.12. We may prevent or suspend your access to the Site if you do not comply with any part of these Terms, any terms or policies to which they refer or any applicable law.

#### **4. Unacceptable Use**

- 4.1. As a condition of your use of the Site, you agree not to use the Site:

1. for any purpose that is unlawful under any applicable law or prohibited by this Policy;
  2. to commit any act of fraud;
  3. to upload Images of explicit nudity or sexual acts
  4. to distribute viruses or malware or other similar harmful software code;
  5. for purposes of promoting unsolicited advertising or sending spam;
  6. to simulate communications from us or another service or entity in order to collect identity information, authentication credentials, or other information ('phishing');
  7. in any manner that disrupts the operation of our Site or business or the website or business of any other entity;
  8. in any manner that harms minors;
  9. to promote any unlawful activity;
  10. to represent or suggest that we endorse any other business, product or service unless we have separately agreed to do so in writing;
  11. to gain unauthorised access to or use of computers, data, systems, accounts or networks;
  12. to attempt to circumvent password or user authentication methods; and
  13. create, upload, post, display, publish or distribute User Content that is obscene, illegal, libelous, hateful, discriminatory, threatening or harassing, incites violence, causes annoyance, inconvenience, anxiety or distress (this list is not and should not be regarded as exhaustive).
- 4.2. If you are using Spenny Piggy on behalf of a business or other entity, you warrant that you are authorised to grant all the licenses stipulated in these Terms and that you are authorised to bind the business or other entity to these Terms.

## **5. Expressly Prohibited Activity**

- 5.1.** Users engaging with Spenny Piggy, encompassing both Wishers and Gifters, are obliged to adhere to our Prohibited Activities guidelines. It's important to note that this list isn't exhaustive.

Spenny Piggy reserves the right to prompt users, at its discretion, for account updates or to face deactivation.

- 5.2.** Explicitly, Wishers cannot collect funds, and Gifters cannot send funds aimed at supporting illegal or prohibited activities.
- 5.3.** Spenny Piggy retains the right to investigate Platform use, close accounts, or remove any Cart or User Account if a breach of our Terms of Use is determined, regardless of the specifics.
- 5.4.** We strictly prohibit the distribution of obscene materials, including nudity or explicit sexual content. Transactions involving illegal adult content or services such as prostitution are forbidden on our platform.
- 5.5.** By utilising Spenny Piggy, both Wishers and Gifters acknowledge all transactions will result in an exchange of digital goods for funds. Gifters will be able to receive digital goods only. Any violation of these guidelines may lead to immediate deactivation of the user's account.
- 5.6.** Spenny Piggy serves as a Wishlist / Membership platform, enabling users to post their desired items / content and receive funds in exchange. It's essential to understand that all purchases will provide content in exchange for the financial support. The service only allows gifters to purchase subscriptions, join monthly memberships and support wishers. In exchange for this support, they will be provided with exclusive content from the wisher. Wishers can also sell digital assets such as art commissions and eBooks. Failure to operate within these guidelines may result in the immediate deactivation of a user's account without prior notice.
- 5.7.** Regarding explicit content, Spenny Piggy adheres to its payment provider's policies, disallowing nudity, pornography, or sexually explicit content on the platform. This includes content depicting or promoting non-consensual sexual acts or adult solicitation.
- 5.8.** Sexual exploitation, implied nudity, and sexually explicit content are strictly prohibited. Content showing explicit body parts must be fully covered by clothing to be allowed.
- 5.9.** Salacious content that isn't explicit may be permitted, such as depictions of clothing covering specific body parts, but explicit content remains prohibited.
- 5.10.** We strictly prohibit content that supports or depicts criminal activities or the trade of regulated goods that are illegal in the United Kingdom. This encompasses a wide range of criminal acts, including instructions on conducting unlawful activities.
- 5.11.** Spenny Piggy operates as a platform for goodwill, donations, subscriptions and memberships. By accessing the site and completing an order, you understand that Spenny Piggy does not place orders for Wishlist items on behalf of Users. The funds are sent directly to the User, and any utilisation of these funds is at the User's discretion. Your contribution is considered a

sponsorship toward a specific product from a User's Wishlist, and the User has full control over how they use the funds provided.

- 5.12.** When making a donation or purchase through the site, it's your responsibility to understand how your donation or funds will be utilised.

## **6. Purchases and Earnings**

- 6.1.** By using the site, you acknowledge that Spenny Piggy employs a third-party payment processor. You understand that to receive funds for items purchased from your Wishlist, you need to set up your bank details with our third-party payment processor. All transactions are handled by our third-party payment processor, responsible for disbursing funds to you upon completion of processing.
- 6.2.** We work with various third-party payment processors and gateways, reserving the right to engage additional processors and gateways at our discretion for all Site and/or Services payments. These third parties might have additional terms and conditions for payment processing, and you're accountable for complying with these terms. We explicitly disclaim liability for any breaches of these terms on your part.
- 6.3.** You keep 100% of what you earn. However, any conversion fees make reduce this total. We are not responsible for such costs.
- 6.4.** In order to make a purchase or subscribe, you may be asked to supply certain information to allow us to process and authorise your purchase, including, without limitation, your name, address, card number, card expiration date, card security number and other information. You represent and warrant that (i) you have the legal right to use the form of payment that you use and that (ii) the information that you are providing with that form of payment is true and correct. You acknowledge that we may use a third party for the purposes of processing or facilitating any payment and that by submitting your information to us you grant us the right to provide this information to such third parties.
- 6.5.** We reserve the right to refuse, cancel or terminate any purchase any time and for any reason in our sole discretion. Without limiting the foregoing, we reserve the right to refuse, cancel or terminate your purchase because of product or service unavailability, errors in the description of price of our product or service and errors in your purchase.
- 6.6.** The price for each subscription, membership or single donation will be set by the wishers. The prices will be clearly stated on the Website and may change from time to time. You will further have the chance to send additional support to the Creators at your sole discretion.
- 6.7.** You agree not to report as fraudulent, lost or stolen any form of payment which you have used in conjunction with payment to us, for which you do not have a good faith reason to believe is in fact fraudulent, lost or stolen. You agree not to report as unauthorised any charge by us for any goods or services, for which you do not have a good faith reason to believe is in fact unauthorised. You agree that absent good faith, in the event of any such report you shall be liable to us for such charge or obligation plus an additional £120 administrative fee. The liability

specified in this paragraph will not limit our rights or any other liability you may have for any other reason, including a breach of any other provision of these Terms.

- 6.8.** All transactions are processed by Stripe. Payments on your statements will be debited by Stripe. In the event that you do not recognise them please contact the Support team at [Support@spennypiggy.co](mailto:Support@spennypiggy.co) or on 020 4587 3147.
- 6.9.** Our fees are chargeable in Great British Pounds (GBP) for [uk.spennypiggy.co](https://uk.spennypiggy.co) and in USD for [spennypiggy.co](https://spennypiggy.co), and any exchange fees/settlements will be determined by the agreement between you, and your bank or credit or debit card issuer.
- 6.10.** All successful transactions incur payment processing fees that are covered by Spenny Piggy
- 6.11.** We accept the following credit cards and debit cards: VISA, MASTERCARD, AMEX, JCB and various other methods of payment, and reserve the right to change this list at any time.
- 6.12.** We will do all that we reasonably can to ensure that all of the information you give us when paying for a subscription is secure by using an encrypted secure payment mechanism. However, in the absence of negligence on our part, any failure by us to comply with this agreement or our Privacy Policy (see section 2) or breach by us of our duties under applicable laws we will not be legally responsible to you for any loss that you may suffer if a third party gains unauthorised access to any information that you give us.
- 6.13.** Your credit card or debit card will only be charged when making a single payment, joining a Membership or starting a reoccurring subscription.
- 6.14.** All payments by credit card or debit card need to be authorised by the relevant card issuer.

## **7. Pricing Policy**

- 7.1.** Spenny Piggy applies a fee range of 8-20% surcharge/fee on top of the User-set product price. This fee covers the expenses of our payment merchant and associated administrative costs. For absolute clarity, this 8-20% fee covers payment processing fees globally.

## **8. Return, Cancellation & Refund Policy**

- 8.1.** All purchases made on Spenny Piggy are final and non-refundable. You are entitled to cancel any paid subscription, for any reason and at any time, thereby ensuring that you will not be billed again for that subscription. It is your responsibility to do so.
- 8.2.** Any purchase made on Spenny Piggy resulting in a chargeback will cause the User's account to be immediately and permanently excluded from Spenny Piggy. Additionally, the chargeback amount will be removed from the earning Creator's income.
- 8.3.** We retain the right to consider refund requests at our sole discretion.



- 8.4.** Gift purchasers must explicitly accept that each transaction is non-refundable before making the order. For subscriptions, it is your responsibility to cancel at any time before the subscription is due. If you fail to do so, you will be charged as you agreed to when setting up the subscription.

## **9. Disputes and Chargebacks**

- 9.1.** Spenny Piggy takes extensive measures to prevent disputes within the business. Despite enacting the highest level of credit card processing security, disputes may still occur, although they're infrequent on our platform. We're dedicated to collaborating with our users (Wishers) to contest unjust disputes. However, in the event of a lost dispute, Spenny Piggy reserves the right to charge the Wishlist owner some or all the cost of the lost dispute.

## **10. Billing Errors**

- 10.1.** If you believe you've been mistakenly billed, please promptly notify our third-party billing agent (Stripe) about the error. Failure to do so within thirty (30) days of the billing error appearing on any account statement means you accept the fee in question for all purposes, including inquiries made by or on behalf of your banking institution. We're released from all liabilities and claims resulting from any error or discrepancy not reported within thirty (30) days of the bill being issued to you. These terms supplement any requirements from third-party billing entities we engage with for billing services. You're responsible for reviewing and complying with these entities' terms, in addition to those in this Agreement.

## **11. Social Media**

- 11.1.** Spenny piggy allows Users to connect to various social media companies including and not limited too: Spotify, Facebook, Twitter, Instagram and Snapchat. By using this feature, you must fully comply with and respect the Terms of Service for Spotify, Facebook and Twitter, Instagram and Snapchat. Spenny Piggy holds no business relationship with any of the aforementioned social media companies and holds no licences to any of the logos in use on the site. There may be other social media sites allowed on Spenny piggy to which the same policy applies.

## **12. Account Deactivation**

- 12.1** Should you wish to deactivate your account, please login and delete your account from the settings section. Depending on the account type, account data will need to be kept on file for a period of time after deactivation or deletion. Please refer to our Privacy Policy for more information. For the avoidance of doubt by using our services you agree to and acknowledge that your data will be kept on file for up to 12 months.

## **Account eligibility, and your responsibilities**

**Before you create an account, you will need to ensure you are eligible to use the site. This section details what you can and can't do when using the site, as well as the rights you grant to us. You are not authorised to create an account or use the site unless all of the following are true, and by using our site, you represent, warrant, and agree that:**

- 13.** You are at least 18 years old;

- 13.1.** You are legally qualified to enter a binding contract with us;
- 13.2.** You are not prohibited by law from using our site;
- 13.3.** You have not committed, been convicted of, or pled no contest to a felony or indictable offence (or crime of similar severity), a sex crime, or any crime involving violence or a threat of violence, unless you have received clemency for a non-violent crime and we have determined that you are not likely to pose a threat to other users of our site;
- 13.4.** You are not required to register as a sex offender, or are already registered as one;
- 13.5.** You have not been banned from using our site;
- 13.6.** You do not have more than one account on our site;
- 13.7.** Comply with our terms and regularly check this page for updates;
- 13.8.** Comply with all applicable laws including, and without limitation, all privacy laws, intellectual property laws, data protection laws and regulatory requirements;
- 13.9.** Treat other users in a respectful and courteous manner;
- 13.10.** Maintain a strong password and take reasonable steps to protect your login details;
- 13.11.** Not use the site in a way that damages the site, or prevents its use by other users;
- 13.12.** Not use the site for any harmful, illegal, or nefarious purpose; harass, bully, stalk, intimidate, assault, defame, harm or otherwise mistreat any users;
- 13.13.** Not use the site in a way to interfere with, disrupt or negatively affect the platform, the servers, or the site's networks;
- 13.14.** Not use another user's account;
- 13.15.** Do not Violate the licence given to you by Social Vortex Limited; and
- 13.16.** Do Not Copy, modify, transmit, distribute, or create any derivative works from, any creator content or our content, or any copyrighted material, images, trademarks, trade names, service marks, or other intellectual property, content or proprietary information accessible through the site without our prior written consent.

#### **14. The licence we give to you**

- 14.1.** Subject to your compliance with these terms, we grant you a limited, non-exclusive, non-transferable, freely revocable license to use our site for your own personal non-commercial purposes. Except as expressly permitted in these terms, you may not: (i) copy, modify or create derivative works based on the site; (ii) distribute, transfer, sublicense, lease, lend or rent your account on the site to any third party; or (iii) reverse engineer, decompile or disassemble our site. We reserve all rights in and to the site not expressly granted to you under these terms.

- 14.2.** Subject to Your compliance with the terms and conditions set out in these terms, we hereby grant to you a limited, non-exclusive, non-transferable, freely revocable license to view content for personal use, except as we may restrict or block at the request of its content providers or on its own initiative.
- 14.3.** We reserve all rights not expressly granted in these terms.
- 14.4.** We reserve the right to exercise whatever lawful means we deem necessary to prevent unauthorised or prohibited uses.
- 14.5.** The Content on the Website, excluding your Content and third-party links, but including other text, graphical images, photographs, music, video, software, scripts and trademarks, service marks and logos contained therein (collectively "Proprietary Materials"), are owned by and/or licensed to us. All Proprietary Materials are subject to copyright, trademark and/or other rights under the laws of applicable jurisdictions, including domestic laws, foreign laws, and international conventions. We reserve all our rights over our Proprietary Materials.
- 14.6.** Except as otherwise explicitly permitted, you agree not to copy, modify, publish, transmit, distribute, participate in the transfer or sale of, create derivative works of, or in any other way exploit, in whole or in part, any Proprietary Material.

## **15. The license you grant to us**

- 15.1.** You agree that you own all intellectual property rights (examples of which are copyright and trademarks) in any content you upload to our site, or that you have obtained all necessary rights to to it.
- 15.2.** You consent to grant us a license to all content posted to our site to perform any act restricted by any intellectual property right (including copyright) in such Content, for any purpose reasonably related to the provision and operation of site. These include the reproduction, ensuring availability, communication online and offline, displaying, performing, distribution, translation, and adaptation or derivative works of the posted content, or otherwise.
- 15.3.** The license which you grant to us is a non-exclusive, royalty-free, worldwide, perpetual sublicensable, assignable and transferable by us. This means that the license will continue even after your agreement with us ends and you stop using our website, that we do not have to pay you for the license, and that we can grant a sub-license of all posted content to someone else or assign or transfer the license to someone else. This license will enable us to, insert text and or watermarks to posted content, to make it available to other users of the site, as well as to use it for other normal day to day operations of the site. We may sell or transfer any license you grant to us in these terms in the event of a sale of our company or its assets to a third party.
- 15.4.** Although we do not own your posted content, you grant us the right to submit infringement notifications to any third-party website or service that hosts or is otherwise dealing in infringing copies of the relevant content without permission. For the avoidance of doubt, we are not under any obligation to submit notifications of infringement, we may at any time submit or withdraw

any such notification to any third-party website or service where we consider it appropriate to do so.

**15.5.** You agree that upon our written request, you will provide us with all consents and other information which we reasonably need to submit notifications of infringement on your behalf.

**15.6.** You waive any moral rights which you may have under any applicable law to object to derogatory treatment of any and all posted content by you on our site.

## **16. End of the agreement**

If this agreement is ended it will not affect our right to receive any money which you owe to us under this agreement.

## **17. Indemnity**

**17.1.** You agree to indemnify and hold harmless us, our directors, employees and consultants from and against any and all claims, losses, demands, causes of action and judgments (including solicitors' or attorneys' fees and court costs) arising from or concerning any breach by you of this Agreement and/or these terms for your use of the site and you agree to reimburse us on demand for any losses, costs or expenses we incur as a result thereof.

**17.2.** Our total liability to you for any and all claims arising out of this agreement, whether in contract, tort (including negligence), breach of statutory duty, or otherwise shall be limited to the greater of £100, or 100% of the fees paid by you to us in relation to the claim.

**17.3.** Except for any legal responsibility that we cannot exclude in law (such as for death or personal injury) we are not legally responsible for any:

17.3.1. losses that:

- (a) were not foreseeable to you and us when the agreement was formed;
- (b) that were not caused by any breach on our part;

17.3.2. business losses;

17.3.3. losses to non-consumers.

17.3.4. losses of profits;

17.3.5. loss of anticipated savings;

17.3.6. loss of business opportunity or goodwill or reputation;

17.3.7. loss of data or information, including any content,

17.3.8. indirect or consequential losses;

17.3.9. loss or damage to you caused by a virus, malware, ransomware, or other technologically harmful material that may infect your computer, data or other material due to your use of our site;

17.3.10. loss of privacy in the event that your data is reposted elsewhere;

17.3.11. loss resultant from the disclosure of your identity, or publication of your personal information by other users or third parties without your consent;

## **18. Referral Scheme**

18.1 Every user with a Spenny Piggy account has a unique referral URL that allows users to earn income from any other user who signs up via their referral link. In order to ensure the referral is successful, the new user must register with Spenny Piggy using the same browser that they used to click the referral link. More information on how the Referral Scheme works can be found at: <https://spennypiggy.co/promotions>

18.2 Spenny Piggy pays Users who refer other Users 3% of all total income earned by the referred User and the payment of this referred income is processed on the first calendar business day of each month. This referral income is deducted from the Spenny Piggy's fee and not from the income of the referred User.

18.3 For a User to be successfully added to another User's referral scheme, that user must sign up to Spenny Piggy via a unique referral URL. In no event will Spenny piggy be liable to add a user to a referral account if that user has not signed up via the correct referral link.

18.4 Users may not use Google Ads to impersonate Spenny Piggy with the intention to refer other Users.

18.5 We reserve the right to review, change and cancel at our sole discretion and without notice the referral scheme.

## **19. Monthly Content requirements**

**19.1.** To remain compliant with stripe and maintain services, it is required that all creators post unique and exclusive content a minimum of 3 times per month. Once for Memberships, Once for Supporters and once for Subscriptions. Failure to do so will result in account suspension or feature suspension. The content must be rightfully owned by you and be classed as unique.

## **20. Monthly Subscription**

**20.1.** When joining Spenny Piggy you will be prompted to activate your payments via Stripe. In order to do so you are required to set up and pay a £4 charge monthly for the cost of Stripe connect and our admin in managing your account. Users who do not pay this charge or the payment fails after 3 attempts. Your account will be suspended until the balance is cleared.

## **21. General**

- 21.1.** Our liability for losses you suffer as a result of us breaking this agreement is strictly limited to the purchase price of the subscription placed, wish granted or membership joined.
- 21.2.** We shall not be liable to you for the failure of any equipment, data processing system or transmission link and will not be liable to you as a result of any down time which may occur upon the site.
- 21.3.** The site is provided on an "as is" basis and you acknowledge that despite our reasonable endeavours the site may contain bugs, errors and other problems (including, but not by way of limitation) infection by viruses (despite anti-virus protections which may be incorporated) or anything else which may cause contamination or destruction of any sort that may cause system failures. Pursuant thereto, we will use all reasonable endeavours to correct any errors and omissions as quickly as practicable after being notified by email to [Support@spennypiggy.co](mailto:Support@spennypiggy.co)
- 21.4.** We shall not be responsible to you for damages or otherwise in respect of any error made to any listing of or reference to subscription.
- 21.5.** We reserve the right to suspend or terminate your access to the site or parts of it if at our sole discretion we believe you are in breach of any provision of this agreement. If your access has been suspended or terminated you will not be permitted to re-register or to re-access the site without our prior consent.
- 21.6.** We reserve the right at any time and from time to time to modify or discontinue, temporarily or permanently the site (or any part thereof) without notice to you and without any liability to you or to any third party.
- 21.7.** We reserve the right to deactivate your account if it has not been active for a period of six (6) months or more, and to remove it from the database if no communication has been received from you for a further 3 months after deactivation has occurred in line with data protection regulation.
- 21.8.** Links to third party websites on the site are provided solely for your convenience. If you use these links, you leave the site. We have not reviewed all of these third-party websites and do not control and are not responsible for these websites or their content or availability. We therefore do not endorse or make any representations about them, or any material found there, or any results that may be obtained from using them. If you decide to access any of the third-party websites linked to the site, you do so entirely at your own risk.
- 21.9.** You may create a link to our Site from another website without our prior written consent provided no such link:
- 21.9.1 creates a frame or any other browser or border environment around the content of our Site;
- 21.9.2 implies that we endorse your products or services or any of the products or services of, or available through, the website on which you place a link to our Site;

- 21.9.3. displays any of the trademarks or logos used on our Site without our permission or that of the owner of such trademarks or logos; or
- 21.9.4. is placed on a website that itself breaches this policy.
- 21.9.5. We reserve the right to require you to immediately remove any link to the Site at any time, and you shall immediately comply with any request by us to remove any such link of we shall be obliged to disable any link or any social media features.
- 21.10.** We may require you to change your username or password or any other information which permits you access to purchase subscription from the site.
- 21.11.** We have the right to withdraw any subscription option from the site for any reason without notice to you and you agree that we will not be responsible for any loss, damage or cost as a result of such unavailability.
- 21.12.** We will not be liable for errors or omissions on the site nor for loss or damage suffered by you as a result of any unavailability of the site or by any use by you or reliance placed on the site or its contents including any damage caused to your computer or otherwise howsoever, or any direct, indirect or consequential loss or loss of data.
- 21.13.** We shall not be liable to you for the failure of any equipment, data processing system or transmission link and will not be liable to you as a result of any down time which may occur upon the site.
- 21.14.** We will try to resolve any disputes with you quickly and efficiently.
- 21.15.** If you are unhappy with:
  - 21.15.1. the subscription;
  - 21.15.2. our service to you; or
  - 21.15.3. any other matter,please contact us as soon as possible at [support@spennypiggy.co](mailto:support@spennypiggy.co)
- 21.16.** If you and we cannot resolve a dispute using our internal complaint handling procedure, we will:
  - 21.16.1. let you know that we cannot settle the dispute with you; and
  - 21.16.2. give you certain information required by law about our alternative dispute resolution provider.
- 22.** No one other than a party to this agreement has any right to enforce any term of this agreement.

- 23.** Except where prohibited by applicable law, any claim or cause of action (including those arising out of or related to this agreement) must be filed within twelve months after the date on which the claim or cause of action arose, or the date you learned of the facts giving rise to the cause of action (whichever is the earlier) or be forever barred.
- 24.** If you want to take court proceedings, the courts of England will have exclusive jurisdiction in relation to this agreement.
- 25.** The laws of England and Wales will apply to this agreement.